



**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: PUDC-26-76 / Cheyenne 98 – Zoning Map Amendment
Date: June 8, 2026

Background:

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 8, 2026
- Public Services Committee June 15, 2026
- Second reading June 22, 2026
- Public Services Committee July 6, 2026
- Third and final reading July 13, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their June 1, 2026, meeting and recommended the Governing Body deny this application due to the Future Land Use Map Amendment not being approved. Please see the Future Land Use Map Amendment memo for the Planning Commission discussion on the associated Future Land Use Map Amendment.

Planning Commission discussion focused on the suitability of industrial development (including data centers) at this location.

The Planning Commission Staff report is attached and unchanged.

Public Comment

Between the publication of the Planning Commission Staff Report and the publication of this memo (June 3, 2026), Staff has received many new inquiries and comments from the public on this project. Staff received multiple emails, phone calls, and in-person visits requesting this application not be approved.

Zone change applications are subject to the protest petition element of state statute. If a valid protest petition is submitted, zone change applications require a supermajority (8 yes votes) for final approval. The neighbors of this zone change application are intending to submit a protest petition for this application.

The project page on the website has received 110 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED BETWEEN I-80 AND COLLEGE DRIVE, EAST OF SOUTHWEST DRIVE FROM MUB MIXED-USE BUSINESS EMPHASIS TO LI LIGHT INDUSTRIAL.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of real property located between I-80 and College Drive, east of Southwest Drive has applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 1, 2026, the City of Cheyenne Planning Commission conducted a public hearing and reviewed the proposed zoning map amendment that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as:

A portion of the SW1/4, Section 12, Township 13 North, Range 67 West lying east of Broken Arrow Road, more particularly described as: Beginning at the south 1/4 corner of said Section 12; thence N.89°35'34"W, along the south line of said Section 12, also being the north line of Southcrest Heights Subdivision, 1728.69' to the east line of Stansbury Subdivision; thence N.09°50'34"E, along the easterly line of the Stansbury Addition, and Lindbloom Subdivision, 2682.45' to a point on the east-west centerline of said Section 12; thence S.89°29'47"E, along the east-west centerline of said Section 12, 1253.35' to the center of said Section 12; thence S.00°21'50"E, along the north-south centerline of said Section, 2644.29' to the point of beginning, is hereby changed to LI Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared

unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

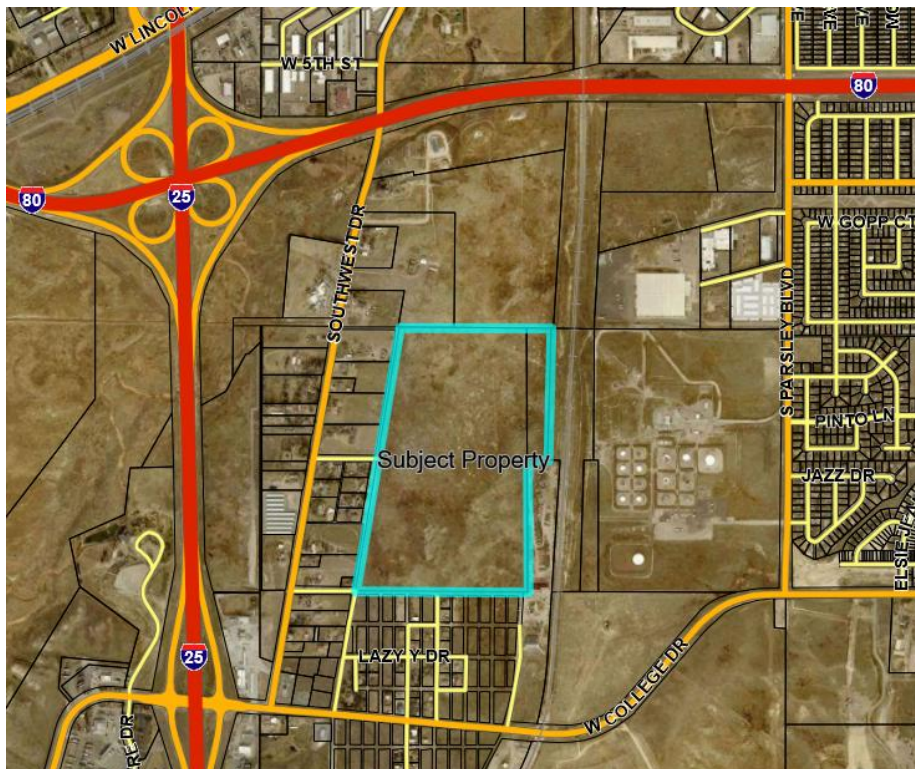
CITY OF
CHEYENNE
PLANNING &
DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION

June 1, 2026

STAFF REPORT

FILE:	PUDC-26-76: Cheyenne 98 – Zoning Map Amendment (zone change)
REQUEST:	A request to rezone approximately 98 acres of land from MUB Mixed-use Business to LI Light Industrial.
LOCATION:	Between I-80 and College Drive, east of Southwest Drive
APPLICANT:	Westside Property Investment Company, Inc.
AGENT:	Westside Property Investment Company, Inc.
OWNER:	Garrett Properties LLC
ZONING:	MUB Mixed-use Business
FUTURE LAND USE:	Proposed Mixed-use Employment (Current – Mixed-use Residential)
PURPOSE:	To zone land LI for unspecified future mixed-use employment
PREPARED BY:	Seth Lloyd, AICP, Senior Planner



RECOMMENDED MOTION:

Should the associated Future Land Use Map Amendment be recommended for approval:

Move to recommend the governing body **approve** the rezoning of approximately 90.5 acres of unplatted land situated northeast of the intersection of Broken Arrow Road and Woodenshoe Drive to LI Light Industrial as shown in the attached zone change map, noting that the project meets the review criteria for approval.

Should the associated Future Land Use Map Amendment be recommended for denial:

Move to recommend the governing body **deny** the rezoning of approximately 90.5 acres of unplatted land situated northeast of the intersection of Broken Arrow Road and Woodenshoe Drive to LI Light Industrial as shown in the attached zone change map, noting that the project does not meet review criteria 1 and 8 – the LI zoning request being incompatible with the future land use designation of Mixed-use Residential.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business to LI Light Industrial for roughly 90 acres of land. The land is currently vacant. The request to LI Light Industrial is for the purpose of unspecified uses that would be allowed in the LI zone but not the MUB zone, or possibly to change the level of design standards for a use permitted in both zones. The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report. To the east of the subject property, there is about 7 acres of land under the same ownership that was zoned LI upon annexation years ago.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	LI Light Industrial, MUB Mixed Use Business Emphasis	Vacant
North	Mixed-use Employment (changed in April, 2026)	LI Light Industrial (changed in May, 2026)	Vacant, Rural Residential, Nursery
South	Urban Residential, Mixed-use Residential	County LU Land Use, County CB Community Business	Rural Residential Vacant
East	Mixed-use Employment	County LI Light Industrial	Industrial
West	Mixed-use Residential	County LU, County PUD	Single-family Residential, Rural Residential, Storage

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The property is currently designated Mixed-use Residential by the Comprehensive Plan, but a comprehensive plan amendment has been submitted to change the designation to Mixed-use Employment.

The current designation (Mixed-use Residential) has an optimal zone of MUR Mixed-use Residential, though a variety of residential zones and the NB zone may also be appropriate. The designation is intended for a mix of residential development with a mix of retail, offices, and light trade. Optimally, areas so designated would be less than one-third non-residential uses. The LI zone allows for no residential uses – encouraging instead warehousing, manufacturing, retail, and office uses. Some service uses (such as campgrounds or entertainment uses) are also permitted. The LI zone is largely incompatible with this future land use designation.

The proposed designation (Mixed-use Employment) has an optimal zone of MUE Mixed-use Employment, though the BP, CB, and LI zones may also be appropriate depending on the context. The MUE designation encourages primarily office and light industry uses, with retail and service uses as secondary uses. Although not optimal, the LI zone would appropriate for this designation.

Support for this application in policies in PlanCheyenne also hinge on the future land use map amendment proposal. For example, policies within PlanCheyenne encourage a mix of uses in the Cheyenne region using the future land use map as a guide (1.1.A), the flexibility to respond to market demands (1.1.B), meeting community housing needs (2.5.A), dispersing housing throughout the community (2.5.B), a business-supportive environment (3.1.C), and providing opportunities for a range of industrial uses (3.5.A).

The proposed zone change for the subject property **does not comply** with review criterion 1 under the current future land use map designation but would **comply** if the concurrent application for future land use map designation change is approved.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby property is zoned LI to the north and east. PUDs for storage uses exist to the west in the County, and Count LU zoning exists to the west and south.

The County LU zone allows for a wide variety of uses, including light industrial uses, but such industry would need conditional use approval in the LU zone. Where developed, the County LU zone surrounding this area consists of single-family homes. The proposed LI zoning is largely compatible with the current surrounding zoning.

Nearby Future Land Use designations include Mixed-use Employment to the north and east, and Mixed-use residential to the south and west. The property is roughly 50% surrounded by Mixed-use Employment and 50% by Mixed-use Residential. Recent development in the area has largely been more industrial in the area, but the current designation on the property is Mixed-use Residential. Based on the future land use plans for the area, LI might be able to be considered compatible with surrounding properties.

There is a request to change the future land use designation of the subject property from Mixed-use Residential to Mixed-use Employment. Should this request be approved, the change would suggest that it would be clearly acceptable to have light industrial uses on this property.

The proposed zone change for the subject property largely **complies** with review criterion 2 under the current future land use map designation, but would clearly comply if the concurrent application for future land use map designation changes is approved.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property is currently zoned MUB Mixed-use Business Emphasis. The MUB zone is intended for a mix of commercial and residential uses in a compact neighborhood pattern. The MUB zone has stringent design standards for development, such as requirements to bring structures to the streets and building façade requirements.

The proposed LI zone has limited design standards and there are no site-specific issues that would limit the ability for the site to develop within applicable design standards.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Future development in the area will be highly constrained by I-80, I-25, College Drive, and the BNSF railroad. Regionally, connectivity is also limited by the UP railroad. These barriers make developing to Article 4 standards for lots and blocks difficult for any development in any zone district. LI zoning generally has less expectations for an interconnected street network at the local-street level than the current MUB zone.

A Major Collector Street is identified on the Transportation Master Plan immediately north of the area proposed for change. This street is an Extension of Allison Road between Southwest Drive and Parsley Boulevard. Right-of-way dedication and improvements will be required in conjunction with future development actions such as platting. A minor collector is also designated along the Broken Arrow right-of-way.

No changes to the current street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area.

Depending on the proposed use, traffic impacts could be significant, however, the current MUB zone's typical development patterns would also likely result in significant traffic impacts – especially if no new regional roads are developed and traffic is required to use the current Southwest Drive.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The UDC indicates that the LI district is intended for environmentally-controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses. The LI district is applicable to larger land areas that are capable of providing substantial buffers to adjacent sites. This district is most appropriate in areas with access to major regional transportation infrastructure, specifically areas designated Industrial in the Comprehensive Plan, and in limited applications within Mixed-use Employment areas.

The subject property is a larger area capable of providing buffers and adjacent to a railroad. It is also near to both I-80 and I-25. The site largely meets the intent and applicability as outlined in the UDC, with the exception that the LI zone is not compatible with Mixed-use Residential designated areas in the comprehensive plan. If the area is changed to be designated 'Mixed Use Employment', the LI zoning is fully compatible.

The proposed zone change for the subject property largely **complies** with review criterion 5 under the current future land use map designation, but would clearly comply if the concurrent application for future land use map designation change is approved.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

No specific development of the site has been noted with the formal rezoning application. The LI zone allows for a variety of limited industrial, office, and retail uses, and the site's location and size would be versatile enough to allow a wide range of potential uses.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments were received in regard to the proposed zone change that have not been covered under other review criteria.

The proposed zone change for the subject property **complies** with review criterion 7.

**8) Whether the application will harm the public health, safety, or general welfare.
(UDC 2.2.1.d.8)**

Cheyenne has had documented housing challenges and taking land anticipated for residential (or mostly residential) development and zoning that land industrial would adversely affect the general welfare of the community. However, if the future land use designation changes and the land is no longer anticipated for residential development, City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **does not comply** with review criterion 8 under the current future land use map designation but would **comply** if the concurrent application for future land use map designation change is approved.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on May 16, 2026.
- **Mailed Notice.** Evidence of mailed notice was provided showing that the letters were mailed on May 15, 2026. The mailed notice appears to have contained errors regarding the location of the property and proposed zoning.
An updated notice was sent May 19, 2026 which corrected the deficiencies in the first notice.
- **Posted Notice.** As of the publication of the Staff Report (May 22, 2026), staff had not received evidence of posted notice; however notice is not required to be posted until May 25, 2026.
- **Internet Posting** on connect.cheyennecity.org on April 10, 2026.

As of the publication of the Staff Report (May 22, 2026), Staff has received two inquiries or comments from the public on this project. One member of the public called the office and had concerns about the deficiencies of the neighbor notice letter, traffic impacts, and industrial nature of new development. One who talked to Staff at the office had concerns deficiencies of the neighbor notice letter and the needed services for development. The project page on the website has received 90 views and no comments.

STAFF REVIEW:

Through the review process, review comments were received expressing concerns about the appropriateness of the LI zone at this location. Staff also mentioned traffic concerns that may become necessary to address with the site plan. There were also some deficiencies with the application that staff requested corrections for.

CONCLUSION:

The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's conclusion on the proposal to zone land LI Light Industrial hinges on the appropriateness of the associated future land use map amendment proposal. Should the future land use map amendment be approved, the extension of 'mixed-use employment'-style development would be considered appropriate and the application would meet all review criteria. On the other hand, if the future land use map amendment is denied, this request would fail to meet review criteria 1 and 8, and meeting review criteria 2 and 5 would be less clear-cut.

Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation** [with future land use map amendment approval]).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated. (**Staff Recommendation** [without future land use map amendment approval])
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

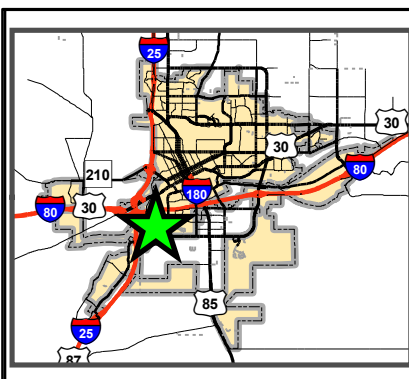
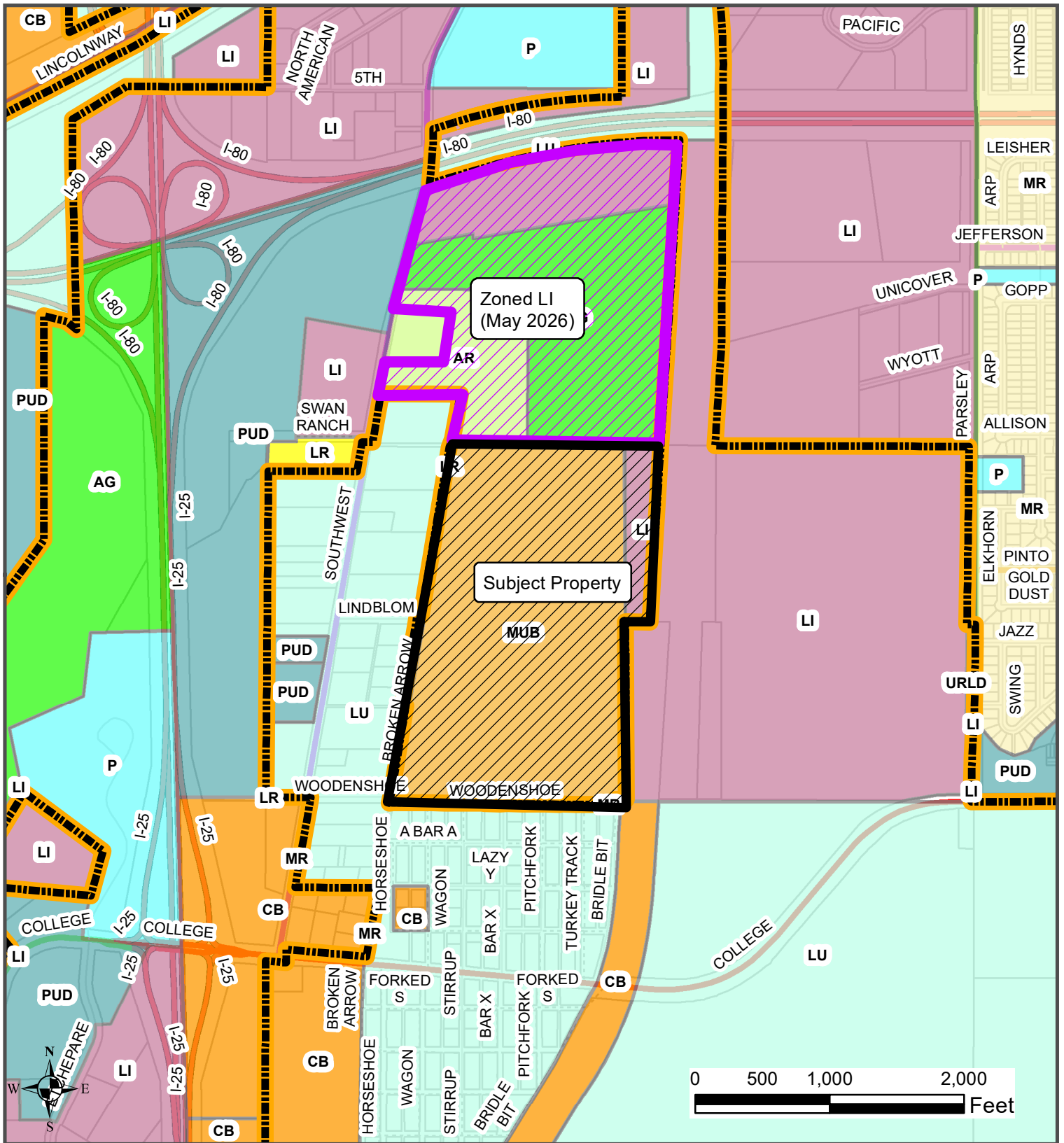
STAFF RECOMMENDATION:

Should the future land use map amendment be approved, staff recommends approval of the rezoning of the property from MUB to LI.

Should the future land use map amendment fail, staff recommends denial of the rezoning of the property from MUB to LI.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

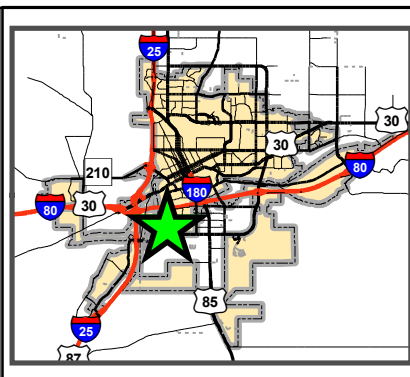
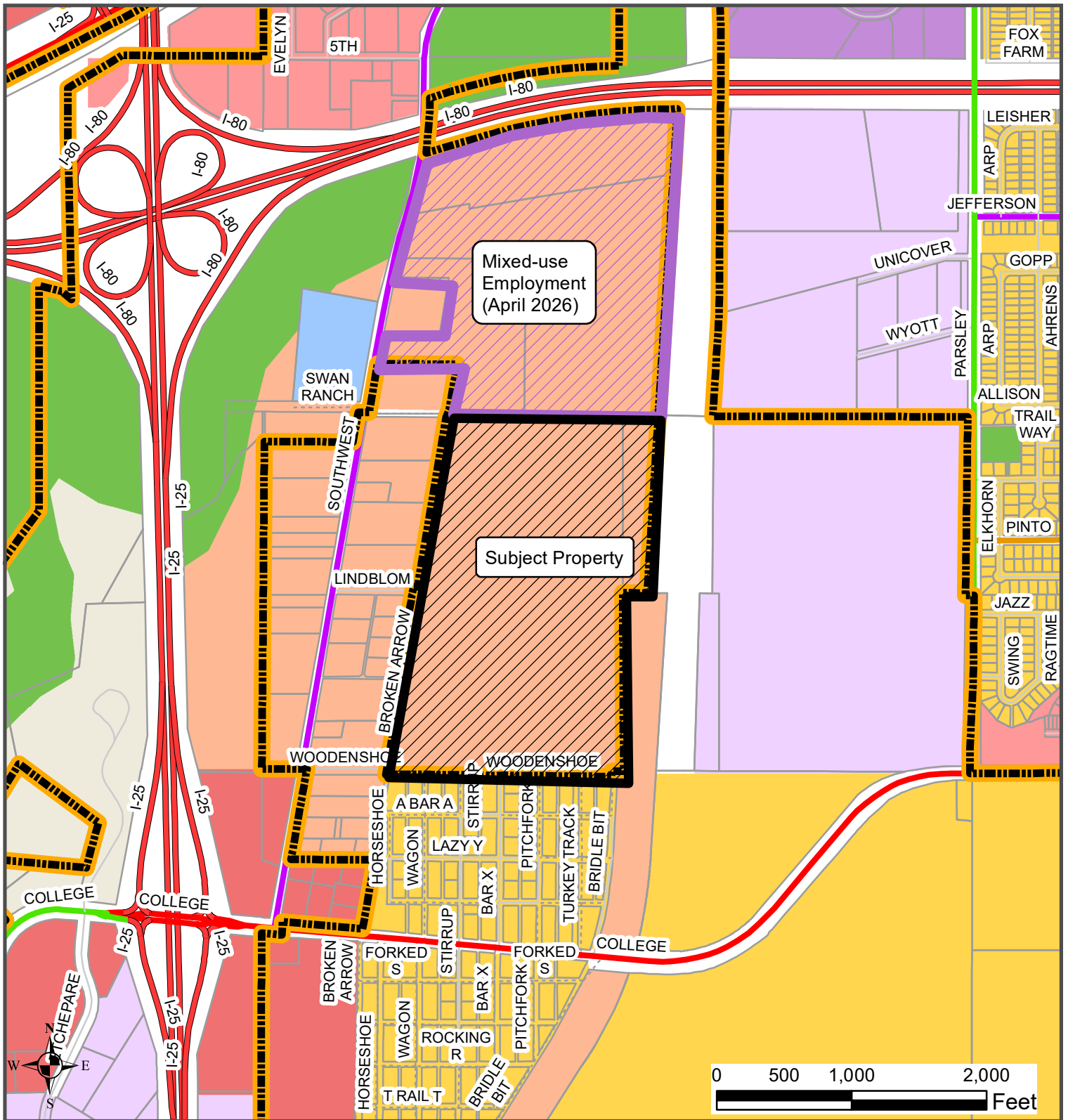


Attachment 1: Zoning Map PUDC-26-76 and 111

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-26-76 and 111

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	CHEYENNE		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				

C. Cheyenne, WY

May 22, 2026

Record No: PUDC-26-76

Zoning Map Amendment

Status: Active

Submitted On: 4/2/2026

Primary Location

O BROKEN ARROW RD
Cheyenne, WY 82007

Owner

GARRETT PROPERTIES LLC
15 GLEN LAKE AVE OKATIE, SC 29909-4609

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?

Cheyenne 98

Proposed Zoning* ?

LI Light Industrial

Project Description or notes ?

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

Westside Property Investment Company, Inc.
Apr 2, 2026

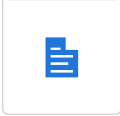
Attachments

	Draft Neighbor Notification Letter Neighbor Notification Letter - Cheyenne 98.docx Uploaded by Westside Property Investment Company, Inc. on Apr 2, 2026 at 11:35 AM	REQUIRED
	Neighbor Notification List Neighbors List - Cheyenne 98.docx Uploaded by Westside Property Investment Company, Inc. on Apr 2, 2026 at 11:36 AM	REQUIRED
	Application Letter Application Letter 4-14-2026.pdf Uploaded by Connor White on Apr 14, 2026 at 3:26 PM	
2 Versions		
	Letter of Authorization	REQUIRED



Lettter of Authorization.pdf

Uploaded by Westside Property Investment Company, Inc. on Apr 2, 2026 at 11:35 AM



Proposed Zoning Map

26135 ALTA-3-10-26.pdf

Uploaded by Westside Property Investment Company, Inc. on Apr 2, 2026 at 11:35 AM

REQUIRED

